

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY

Customer #:			
Trf from:			
Reviewer:	Initials	Date	
Agent:		/	/
Mgr:		/	/

To be completed by City/County Clerk

License Fees	Annual Fee: \$ _____	Local License #: <u>2-443317</u>
	Prorated Fee: \$ _____	Date filed with clerk: <u>1 / 20 / 2023</u>
	Transfer Fee: \$ <u>100.00</u>	Advertising Dates: (2 Weeks) <u>Feb. 2</u> & <u>Feb. 9, 2023</u>
	Publishing Fee: \$ <u>100.00</u>	Hearing Date: <u>2 / 13 / 2023</u>
Publishing Fee Direct Billed to Applicant: ☐		
License Term:	<u>upon delivery</u>	Through <u>3 / 31 / 2024</u>
	Month Day Year	Month Day Year

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

Applicant: Wyoming Horse Racing LLC

Trade/Business Name (dba): Horse Palace

Building to be licensed/Building Address: Lot 1, Block One, Swan Ranch Rail Park, 16th Filing

Number & Street

Cheyenne WY 82007 Laramie

City State Zip County

Local Mailing Address: PO Box 1247

Number & Street or P.O. Box

Cheyenne WY 82003

City State Zip

Local Business Telephone Number: (307) 288-1813 Fax Number: () _____

Business E-Mail Address: jeffblack@wyominghorseracing.com

FILING FOR

- ☐ NEW LICENSE
- ☒ TRANSFER OF LOCATION

FILING IN (CHOOSE ONLY ONE)

- ☒ CITY OF: Cheyenne
- ☐ COUNTY OF: _____

FILING AS (CHOOSE ONLY ONE)

- ☐ INDIVIDUAL
- ☐ PARTNERSHIP
- ☐ LP/LLP
- ☒ LLC
- ☐ CORPORATION
- ☐ LTD PARTNERSHIP
- ☐ ORGANIZATION
- ☐ OTHER _____

- ☒ TRANSFER OWNERSHIP ☒ ASSIGNMENT LETTER ATTACHED

FORMERLY HELD BY: Poor Richard's, a Wyoming corporation

TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)**RETAIL LIQUOR LICENSE**

- ☐ ON-PREMISE ONLY (BAR)
- ☐ OFF-PREMISE ONLY (PACKAGE STORE)
- ☒ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)

- ☐ RESTAURANT LIQUOR LICENSE
- ☐ BAR AND GRILL LIQUOR LICENSE
- ☐ RESORT LIQUOR LICENSE

LIMITED RETAIL LIQUOR LICENSE (CLUB)

- ☐ VETERANS CLUB
- ☐ FRATERNAL CLUB
- ☐ GOLF CLUB
- ☐ SOCIAL CLUB

- ☐ MICROBREWERY PERMIT
- ☐ WINERY PERMIT
- ☐ DISTILLERY SATELLITE PERMIT
- ☐ WINERY SATELLITE PERMIT
- ☐ COUNTY MALT BEVERAGE PERMIT
- ☐ SPECIAL MALT BEVERAGE PERMIT

SPECIAL DESIGNATIONS (CHOOSE ONLY ONE)

- ☐ GOLF CLUB ☐ GUEST RANCH ☐ RESORT

To Assist the Liquor Division with scheduling inspections: **OPERATIONAL STATUS**

☒ FULL TIME (e.g. Jan through Dec)	(specify months of operation)	from <u>10am</u> to <u>Monday-Thursday</u> <u>10pm</u>
☐ SEASONAL/PART-TIME	DAYS OF WEEK (e.g. Mon through Sat)	from <u>10am</u> to <u>Friday, Saturday</u> <u>midnight</u>
☐ NON-OPERATIONAL/PARKED	HOURS OF OPERATION (e.g. 10a - 2a)	from <u>10am</u> to <u>Sunday</u> <u>11pm</u>

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 4**1. BUILDING OWNERSHIP:** Does the applicant? W.S. 12-4-103(a)(iii)

- (a) **OWN** the licensed building? ☒ YES (own)
 (b) **LEASE** the licensed building? (Lease must be through the term of the liquor license) ☐ YES (lease)

If Yes, please submit a copy of the lease and indicate:

- (i) When the lease expires, located on page _____ paragraph _____ of lease.
 (ii) Where the **Sales** provision for alcoholic or malt beverages is located, on page _____ paragraph _____ of lease.
 (MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.)

2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b)

☐ YES ☒ NO

3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403

- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
 (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
 (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
 (d) If you answered **YES** to any of the above, explain fully and submit any documents in connection there within:

4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b)

☒ YES ☐ NO

If "YES", explain: Applicant holds a liquor license transferred by its landlord at 1601 Central Ave.

5. BAR AND GRILL LICENSE OR RESTAURANT LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413(a)

☐ YES ☐ NO

6. RESORT LICENSE:

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
 (b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
 (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
 (d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
 (e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)
 1. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

7. MICROBREWERY LICENSE:

- (a) Do you self distribute your products? W.S. 12-2-201(a)
 (Requires wholesale malt beverage license with the Liquor Division)

☐ YES ☐ NO

8. LIMITED RETAIL (CLUB) LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
 (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

9. LIMITED RETAIL (CLUB) LICENSE:**VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):**

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:**GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):**

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:**SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):**

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

12. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

13. If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, **and every officer, and every director** must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	No. of Years in Corp or LLC	% of Corpora te Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
WY FUNDING LLC		71 S.E. Wyoming Blvd. Casper, WY 82609	307-288-5127	1	100%	YES ☐ NO ☒	YES ☐ NO ☒
Nicholas Hughes	7-18-1956	392 Lum Crowe Road Roswell, GA 30075	270-776-5744	2*	0%	YES ☐ NO ☒	YES ☐ NO ☒
John H. Sheldon, III	9-5-1954	11383 Merado Peak Dr. Las Vegas, NV 89135	513-544-6207	2*	0%	YES ☐ NO ☒	YES ☐ NO ☒
Peter Liguori	12-6-1957	225 North Evergreen Avenue Elmhurst, IL 60126	312-618-6922	2*	0%	YES ☐ NO ☒	YES ☐ NO ☒
* See attached Exhibit 1						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

REQUIRED ATTACHMENTS:

- ☒ A statement indicating the financial condition and financial stability of the applicant. W.S. 12-4-102(a)(vi).
- ☐ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b) / W.S. 12-4-301(e). * None - applicant owns the premises
- ☒ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer. W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

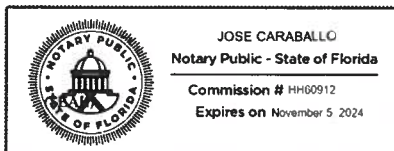
Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF Florida)
COUNTY OF Miami) SS.

Signed and sworn to before me on this 20th day of January, 2023 that the facts alleged in the foregoing instrument are true by the following:

1) <u>Peter Liguori</u> (Signature)	<u>Peter Liguori</u> (Printed Name)	<u>Exec VP</u> Title
2) _____ (Signature)	_____ (Printed Name)	_____ Title
3) _____ (Signature)	_____ (Printed Name)	_____ Title
4) _____ (Signature)	_____ (Printed Name)	_____ Title
5) _____ (Signature)	_____ (Printed Name)	_____ Title
6) _____ (Signature)	_____ (Printed Name)	_____ Title

Witness my hand and official seal:



[Signature]
Signature of Notary Public

My commission expires: 11/05/2024
Notarized online using audio-video communication

Exhibit 1

to

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

of

Wyoming Horse Racing LLC

All (100%) of the membership interests in Wyoming Horse Racing LLC ("Applicant") are owned by WY Funding LLC, a Delaware limited liability company. Applicant is managed by Pacesetter Racing & Gaming LLC, a Delaware limited liability company ("Manager LLC"). The three members of Manager LLC are listed on the application. The "No. of Years in Corp or LLC" for each member is the number of years such individual has been a member of Manager LLC. The application is signed by Mr. Liguori (though each individual is involved in roles relating to the management of Applicant). Manager LLC is providing management and consulting services to Applicant – those services do not include the sale of alcohol.

ASSIGNMENT

FOR VALUABLE CONSIDERATION, the receipt and sufficiency of which is hereby acknowledged, Poor Richard's, a Wyoming corporation (the "Transferor"), does hereby transfer and assign and unto Wyoming Horse Racing LLC, a Wyoming limited liability company, with address at P.O. Box 1247, Cheyenne, WY 82003 (the "Transferee"), all of Transferor's right, title and interest in and to that certain liquor license issued by the City of Cheyenne, Wyoming, Liquor License No. 3 (the "License"). This assignment is contingent upon licensing authority approval. Transferor warrants to Transferee that Transferor is the sole owner of the License and that the License is free and clear of all liens and encumbrances.

DATED this 17th day of January, 2023.

POOR RICHARD'S, A WYOMING CORPORATION

Signed:  01/17/2023
Name (print): PoorRichard's MRauzi
Title: _____

Wyoming Horse Racing, LLC
PO Box 1247
Cheyenne, WY 82003

January 20, 2023

Mayor Patrick Collins
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

RE: City of Cheyenne Liquor License #3
Transfer from Poor Richards to Wyoming Horse Racing, LLC
Located at 6421 Speer Road, Cheyenne (Swan Ranch Location)

Dear Mayor Collins:

We are making good progress on the construction for our new Touristic OTB location in the Swan Ranch development in Cheyenne. As we have discussed, amenities will include a bar and restaurant to offer guests the opportunity to have a meal and drink while in the facility. To that end we have been searching for a liquor license to allow this to happen and have found one.

We would respectfully request the transfer of this license, #3, to our company to complement the operation of the new Touristic OTB location. We are excited about our new location and look forward to bringing tourism dollars into Cheyenne from out-of-state visitors.

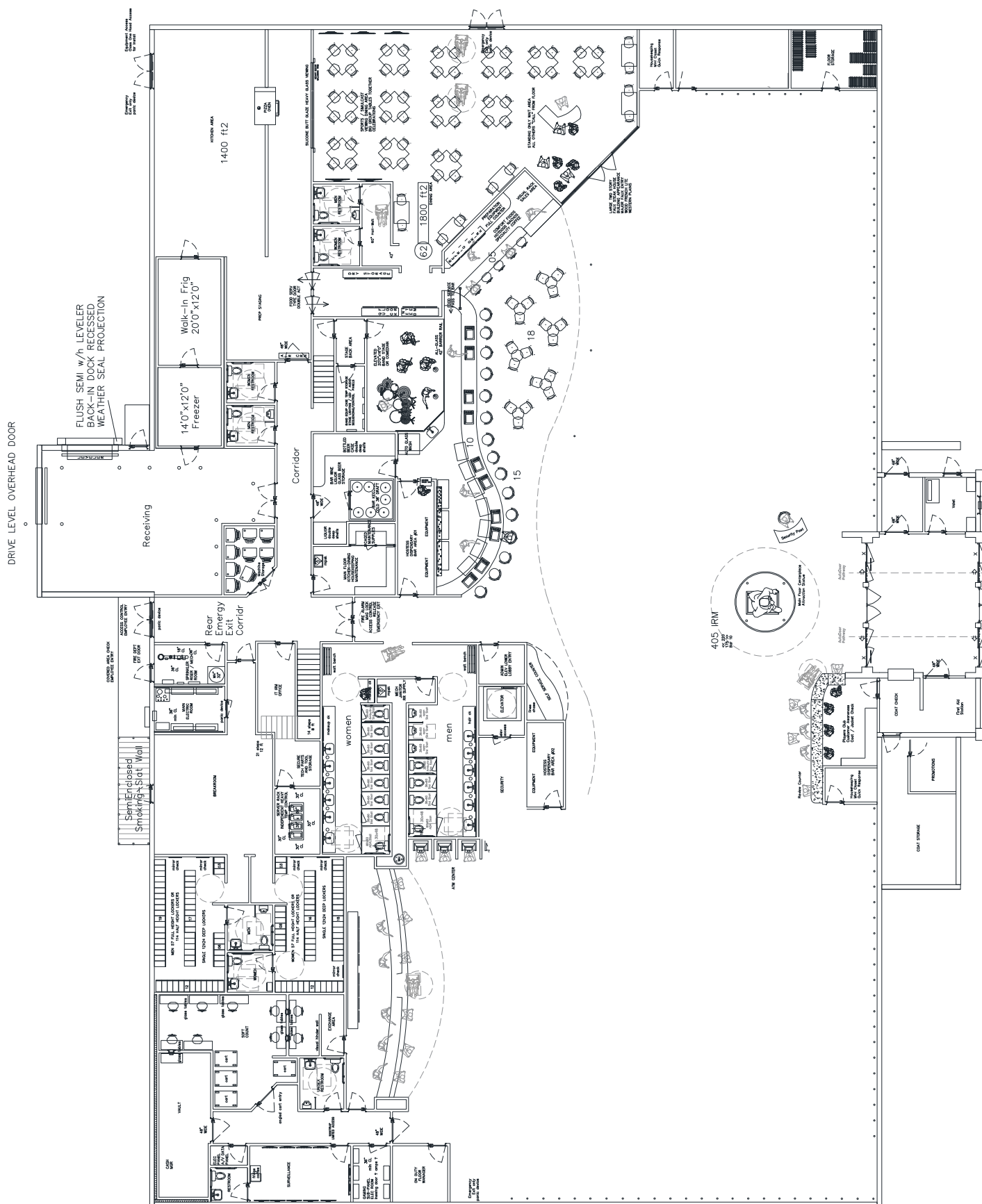
We have completed the necessary application to facilitate this transfer. Please feel free to call with any additional questions you may have regarding this request.

Sincerely,



Peter Liguori
Executive VP, Wyoming Horse Racing, LLC

Cc: Steven Jimenez, General Manager – Wyoming Horse Racing LLC



Floor Layout – Additional Information

It is anticipated that liquor would be served in the restaurant, bar and HHR floor areas in the facility. The HHR floor would be serviced from a designated service area. The restaurant would be serviced from a pass through from the bar. The bar would be serviced from the bar itself.

STATE OF WYOMING
Office of the Secretary of State

I, CHUCK GRAY, Secretary of State of the State of Wyoming, do hereby certify that according to the records of this office,

Wyoming Horse Racing LLC
is a
Limited Liability Company

formed or qualified under the laws of Wyoming did on **March 31, 2011**, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number **2011-000599488**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed Articles of Dissolution.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 20th day of January, 2023 at 11:08 AM. This certificate is assigned ID Number 057890933.



A handwritten signature in cursive script that reads "Chuck Gray". The signature is written in black ink and is positioned above a horizontal line.

Secretary of State

Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <https://wyobiz.wyo.gov> and following the instructions displayed under Validate Certificate.

**STATE OF WYOMING * SECRETARY OF STATE
BUSINESS DIVISION**

Herschler Bldg East, Ste.100 & 101 , Cheyenne, WY 82002-0020

Phone: 307-777-7311 | Email: UCC@wyo.gov

CROWLEY FLECK PLLP
511 W 19TH ST STE 100
CHEYENNE, WY 82001

Request Date: 01/20/2023 11:07 AM
Info Request Doc #: 2023-23665623
Contact Name:

UCC Lien Certified Search Report

Search Results Include Documents Processed Through 1/20/2023 11:07 AM

The below listing is a record of active financing statements, statements of amendment, notices of federal tax liens, severance tax liens, or producer lien notices which name the debtor listed below and which are on file in this Office as of the date and time noted above. Note: EFS filings are not included in an official UCC2 search.

Search Criteria:

Organization: POOR RICHARD'S

Active (unlapsed records only, includes terminations), List and ALL Copies

Enclosures: Original Documents

No UCC Documents were found matching the criteria provided.

Wyoming Horse Racing, LLC
PO Box 1247
Cheyenne, WY 82003

January 20, 2023

Mayor Patrick Collins
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

RE: City of Cheyenne Liquor License #3
Transfer from Poor Richards to Wyoming Horse Racing, LLC
Located at 6421 Speer Road, Cheyenne (Swan Ranch location)

Please be advised that Wyoming Horse Racing, LLC will be implementing the alcohol training program (TIPs) pursuant to City of Cheyenne City Code Chapter 5.12 requirements at our new Touristic OTB location at 6421 Speer Road.

Sincerely,

A handwritten signature in blue ink, appearing to read 'Peter Liguori', with a stylized flourish extending to the right.

Peter Liguori
Exec VP, Wyoming Horse Racing, LLC

CC: Steven Jimenez, General Manager – Wyoming Horse Racing